

SCOPE OF WORK (SOW)
DEPARTMENT OF VETERANS AFFAIRS (VA)
OFFICE OF CONSTRUCTION AND FACILITIES MANAGEMENT (CFM)
HEALTHCARE ARCHITECT-ENGINEER INDEFINITE DELIVERY INDEFINITE QUANTITY (IDIQ)
MULTIPLE AWARD TASK ORDER CONTRACT (MATOC) CONTRACT

1.0 GENERAL

- 1.1 Objective.** The objective of this Multiple Award Task Order Contract (MATOC) is to provide Architect-Engineer (AE) services in support of the Department of Veterans Affairs (VA), Office of Construction & Facilities Management (CFM), Veterans Health Administration (VHA) and the subordinate Veteran Integrated Services Networks (VISN), and VA Medical Centers (VAMC). AE services will include, but are not limited to planning studies, design development, site investigations, facility assessments, feasibility studies, electrical studies, preparation of specifications and drawings, cost estimates, construction document review, Request for Proposal (RFP) development, and construction period quality assurance/quality control. The AE is expected to provide all labor, materials, logistical, and administrative support in the performance of Task Orders (TO) awarded under this contract and will perform and deliver work in keeping with commonly accepted practices, quality, and professional standards for the architect-engineer industry and in keeping with all applicable local, state, and federal requirements.
- 1.2 Background.** The VA CFM is committed to improving our project development processes which places an increased emphasis on accurate project definition resulting in reduction of ambiguity and mitigating risks in the design, construction, and delivery of projects. Implementation Planning is CFM's restructured approach to pre-planning for efficient scope development to define the agency's requirements more clearly. Implementation planning is designed to develop capital investment solutions which enable VHA to deliver healthcare services matching anticipated and expected demand. In doing so, CFM looks to achieve recapitalization of the VA portfolio and improve the facility lifecycle.
- 1.3 Location of Work.** The scope may involve work in multiple locations throughout the Contiguous United States, Alaska, Hawaii, and outlying areas as defined in FAR 2.101. The work will require travel to work sites and Government properties for the purposes of data collection, meetings, asset assessments, system testing, etc. based on the requirements of each individual task order. However, the bulk of the work is anticipated to be performed in the contracted AE's home offices.
- 1.4 Organizational Conflicts of Interest.** In accordance with FAR Subpart 9.5, Organizational and Consultant Conflicts of Interest, FAR 36.209, Construction Contracts with Architect-Engineer Firms and VAAR Provisions 852.209-70 Organizational Conflicts of Interest, no contract for the construction of a project shall be awarded to the firm that designed the project or its subsidiaries or affiliates, except with the approval of the head of the agency or authorized representative.

Accordingly, some restrictions on the future activities of the contractor and its subcontractors may be required. These restrictions may include prohibiting the contractor or its subcontractors

from participating in a contract or a task order. However, in future procurements, the contractor or its subcontractors may request a determination of its ability to participate in a particular procurement from the Contracting Officer.

2.0 DESCRIPTION OF SERVICES

Requirements for this AE MATOC contract will fall into the following functional areas or similar type work. The functional areas broadly describe potential work that could be executed as part of this MATOC. The AE may be required to perform individual functional areas or multiple functional areas as part of a larger coordinated effort under the same task order. The specific tasks and deliverables will be further identified at the task order level.

Unless otherwise stated in each task order, the requirements/standards of the VA Technical Information Library (TIL) will apply. The web address for the VA TIL: <https://www.cfm.va.gov/til>.

2.1 Facility Condition Assessment/Baseline Analysis Assessment/Technical Assessment.

Description of Work: Provide consulting services and technical studies to accurately document existing infrastructure conditions of a facility(s) and surrounding campus. Technical studies and analyses performed could include, but are not limited to: boundary surveys, land survey and site utility plans, site utility analysis, climate analysis, mechanical systems analysis, electrical service and distribution analysis, environmental assessments, code and VA standards review, facility age and condition assessment, site and buildings physical security analysis, fire protection analysis, environmental analysis, HVAC system analysis, traffic studies, hazardous materials, geotechnical and soils report, medical low voltage report, OIT surveys, cybersecurity compliance surveys, natural resources assessment, opportunities for expansion, structural analysis, seismic analysis, cost estimates, computerized maintenance management system analysis and other similar type work.

Deliverables: Facility Condition Assessment Report, Master Plans, reports, studies, data development, drawings, cost estimates, and recommendations resulting from the inspection and evaluation of the facility(s) and surrounding area.

2.2 Seismic Consulting Services and Technical Studies.

Description of Work: Provide consulting services and technical studies on structural and/or nonstructural seismic issues including but not limited to seismic screenings, detailed evaluations, performance-based assessment, recommended conceptual retrofit solutions and other seismic mitigation alternatives, risk assessments, inventory risk prioritization methodology, and impact of facility standards on building performance and facility life cycle. Services may require on-site inspections, cost estimates for proposed mitigation solutions, structural material testing, seismic resistance performance testing, etc.

Deliverables: Reports, studies and data development involving investigation and evaluation of the issues.

2.3 Sustainable Design, Energy Reduction, and Renewable Energy Use Investigations

Description of Work: Provide professional services, including performance of technical studies, related to the sustainable design and construction of federal facilities. Professional services will include work related, but not limited, to green building certification, energy efficiency, water efficiency, renewable energy generation and storage, greenhouse gas emissions reduction, climate resilience, indoor environmental quality, sustainable materials, construction waste reduction, in accordance with the most current applicable Federal requirements and VA Directives and criteria.

Deliverables: Reports, studies, data development, drawings and recommendations resulting from the inspection and evaluation of the facility(s) and surrounding campus.

2.4 Healthcare Planning/Service Delivery Plan Studies and Analyses

Description of Work: Provide consulting services to perform an analysis of expected patient demographics and workload projections in order to identify the optimal provision and distribution of health care services across all delivery platforms.

Deliverables: A comprehensive service delivery plan that defines services to be provided at locations across each VA Medical Center's catchment area.

2.5 Validation and Gap Mitigation Plan Studies and Analyses/Feasibility Studies

Description of Work: Provide consulting services to perform studies that compare existing healthcare asset capabilities to the Service delivery plan and provide recommendations to resolve the gaps in healthcare services via new, expanded, or consolidated points of care, enhanced partnerships, or divestments.

Deliverables: Through a course of action analysis, provide recommendations on capital investment options including, but not limited to, the costs to acquire, construct, and operate new sites of care versus the costs to renovate and/or maintain the existing site of care.

2.6 Functional Programming Studies and Analyses

Description of Work: Provide consulting services to determine the appropriate size and functional programming of new healthcare assets, including but not limited to, staffing requirements, room by room space programming and adjacencies, concept of operations (CONOPS), parking, land requirements for each of the market solutions. Validate asset size requirements through preliminary blocking and stacking analysis.

Deliverables: Detailed Campus Master Plan and phasing plans to achieve long-term vision.

2.7 Project Development and Definition Support

Description of Work: Provide consulting services to develop project definition packages through the application of the appropriate criteria, standards, and codes to proposed project scopes

while incorporating site-specific adaptations. Ensure that the project definition package reflects the method of capital acquisition (lease, renovation, construction, or divesture).

Deliverables: Executable design and construction and/or lease documents required for capital investments.

2.8 Electrical Studies and Analyses

Description of Work: Perform data collection and electrical studies and analyses in accordance with NFPA 70E (Standard for Electrical Safety in the Workplace), IEEE 1584 (IEEE Guide for Performing Arc-Flash Hazard Calculations), IEEE 241 (Protection and Coordination of Industrial and Commercial Power Systems), IEEE 141 (IEEE Recommended Practice for Electric Power Distribution for Industrial Plants, IEEE ANSI C2 (National Electrical Safety Code), and NFPA 70 (National Electrical Code). Electrical studies and analyses to be performed include, but are not limited to, power system modeling, short circuit studies, protective device coordination, arc flash analysis, voltage drop calculations, arc-flash label installation and other similar type work.

Deliverables: Reports, studies, data development, drawings, and recommendations resulting from the inspection and evaluation of electrical systems.

2.9 Planning, Design, and Construction Standards & Criteria Development

Description of Work: Provide Architecture, Engineering, Planning and related built environment and environment of care expertise and services for the research, development, and publishing of Planning, Design, and Construction Standards and Criteria, and design and technical guidance for healthcare and supporting facilities. Establish and employ multi-discipline teams of subject matter experts skilled in planning, architecture, engineering, and appropriate disciplines necessary for program focused research, analysis, team building and management, input and data management, technical writing, drawing/graphics, and recommendations for planning, design, and construction. Collect, organize, and prioritize input from multiple sources and provide analysis and recommendations for decision. Develop publish-ready standards and criteria and provide supporting recommendations and consultations. Work will be published in the VA Technical information Library www.cfm.va.gov/til.

Deliverables: Planning, design and construction standards and criteria publications, studies, documentation, and consultations, targeted and aligned with discipline and purpose, suitable for publishing in the VA Technical Information Library in appropriate document types. Documents include but are not limited to Design Guides (PG-18-12), Design Manuals (PG-18-10), Space Planning Criteria (PG-18-9), Equipment Guide Lists (PG-18-5), Topic Specific Standards and Criteria (PG-18-13), Master Construction Specifications (PG-18-1), Special Studies, and Program/Systems support.

2.10 Code Review Services

Description of Work: Provide code consulting, assessment, evaluation, and inspection services utilizing experts skilled in appropriate technical areas necessary for the analysis and/or evaluation of building designs, existing VA facilities and/or other necessary studies.

Deliverables: Reports supported by analysis, recommendations, drawings, and/or data resulting from the inspection, investigation, and evaluation of VA facilities and/or review of drawings, data, or other provided materials.

2.11 Schematic Design

Description of Work: Provide all services for preparation, planning, evaluation, review, and recommendations for all architectural and engineering discipline calculations, specifications, reports, systems analyses, drawings, and cost estimates meeting the approved space program, and program for design in accordance with the AE Design Submission Program Guide PG-18-15 and other applicable guidance documents from the TIL. Services shall include delivery of reports, narratives, calculations, drawings, and other required information; participation in the design review process by providing acceptable revision, and/or responses to design comments communicated via DrChecks or other similar review applications, and; may include making presentations and participation in design review meetings requiring site visits to VA facilities and meetings with CFM personnel in Washington, D.C.

Deliverables: The schematic design submission shall meet the requirements of PG-18-15 and other applicable guidance documents from the TIL.

2.12 Design Development (DD)

Description of Work: The preparation of Design Development (DD) documents consisting of updated drawings, specifications, and supporting documents and calculations meeting the approved scope and space program. The DD's will be developed from the approved schematic documents and in accordance with AE Design Submission Requirements in PG-18-15 and other applicable guidance documents from the TIL. Services shall include delivery of reports, narratives, calculations, draft specifications, drawings, cost estimates, and other required information; participation in the design review process by providing acceptable revision, and/or responses to design comments communicated via DrChecks or other similar review applications, and; may include making presentations and participation in design review meetings requiring site visits to VA facilities and meetings with CFM personnel in Washington, D.C.

Deliverables: The DD submission shall meet the requirements in PG-18-15 and other applicable guidance documents from the TIL.

2.13 Construction Document (CD) Development

Description of Work: The preparation of construction documents (CDs) consisting of complete drawings, specifications, medical equipment, and furnishings lists, and supporting documents and calculations necessary for the bidding and construction of the project. The CDs will be developed from the approved design development documents in accordance with AE Design Submission Requirements, in PG-18-15 and other applicable guidance documents from the TIL. Services shall include delivery of surveys, reports, narratives, calculations, specifications, drawings, equipment lists, cost estimates, and other information necessary to support solicitation and award of construction. Services may also include: participation in the design

review process by providing acceptable revision, and/or responses to design comments communicated via DrChecks or other similar review applications; making presentations and participating in design review meetings requiring site visits to VA facilities; participating in pre-proposal conferences during solicitation for construction, and; providing responses and or document revisions in response to requests for information (RFIs) during solicitation for construction.

Deliverables: The CD submission shall meet the requirements in PG-18-15 and other applicable guidance documents from the TIL.

2.14 Value Engineering (VE) Review

Description of Work: Provide qualified VE Consultant or Staff Engineer with no less than 40-hour VE Workshop training based on conventional formalized method of the Society of American Value Engineers to lead a qualified VE Task Team, supplied from the offeror's, or his consultant's teams and comprised of no less than one architect, one structural engineer, one mechanical engineer and one electrical engineer with additional support as necessary. The VE Task Team shall review design submissions and cost estimates for the purposes of developing and documenting recommendations for implementing design technologies that enhance building performance by reducing energy consumption, improving functionality and/or durability, while lowering first, or life-cycle costs, or both, with emphasis on lowering total life-cycle cost of constructing, maintaining, and operating the project facility. Participation in meetings with the designer of record and CFM personnel on site or in Washington, D.C. may be required.

Deliverables: VE Report with recommendations and quantified projected costs and cost savings in terms of first (construction) cost and life-cycle cost. Addendum to include tabulation of recommendations implemented in the design with associated costs and cost savings.

2.15 Cost Estimates

Description of Work: Review, evaluate, and provide recommendations on the cost estimate prepared by the AE of Record as to the cost submission basis of cost, accuracy in quantities, and completeness based upon submission requirements of the PG-18-15. Evaluation shall include but not be limited to local labor rates, energy conservation costs, asbestos abatement costs, cost escalation, cost of operations, personnel requirements costs, manpower trade requirements and material costs timeline. Additionally, a verification of new gross area take-off may be required. Preparation of independent cost estimates and evaluation of mid-point construction costs and anticipated inflation rates during construction may be required. Participation in meetings with CFM personnel virtually or in Washington, D.C. may be required.

Deliverables: Cost estimate report by trade, material required, phase, and/or element, documentation.

2.16 Peer Review

Description of Work: Provide evaluation, review and recommendation on all architectural and engineering disciplines' designs, calculations, specifications, reports, system analyses, conformance

with sustainable design criteria and thorough completeness and coordination based upon development of the final approved Schematic Plan. The services provided shall include the review, evaluation, and recommendations of the partial or completed set of construction drawings and specifications and provide recommendations regarding any other documents necessary for the bidding and construction of the project. The documents for evaluation will be provided by the Designer of Record AE. The Peer Review AE shall evaluate and ensure coordination of the drawings between the disciplines and identify costs, errors, omissions, or conflicts found between drawings and specifications. Review and comment on project phasing and constructability. Evaluate market conditions that may impact bidding climate and cost estimate. Review any resubmitted construction documents with recommendations as to their acceptability in accordance with PG-18-15. Develop a Project Definition Rating Index Score. Evaluations will be based upon the submission requirements established in PG-18-15 and applicable criteria/guidance documents on the TIL. Provide comments in DrChecks or similar application as directed by the contracting officer. Services may include site visits to VA facilities for participation in reviews and meetings with CFM personnel in Washington, DC.

Deliverables: Review, evaluate, and provide written recommendations based on reviewed design submissions (Concept, SD, DD, etc.) and/or construction documents and Design-Build RFP reviews, in accordance with PG-18-15 and all applicable design criteria. Comments shall be entered in DrChecks or similar program as directed by the contracting officer. Provide a written report with annotated drawing comments and recommendations on the acceptability of the design submission relative to the requirements established by the PG-18-15 and other applicable guidance on the TIL.

2.17 Constructability Review

Description of Work: Provide a detailed analysis of the construction documents to assure clarity, accuracy, coordination, and completeness of the documents. The review shall focus on the suitability of the drawings and specifications for ease of construction and placement and maintenance of equipment. It shall identify any missing information necessary to facilitate proper construction including but not limited to ensuring key equipment controls are properly identified, electrical circuits are identified and provided for equipment and powered devices including door operators, lighting, mechanical room equipment, pumps, etc.; that hardware schedules are complete and properly identify all doors and required hardware; that foundation and structural details are provided to support all walls, floors, windows, equipment, etc.; that transition details are provided for ceilings, walls, pavements, etc.; that finishes are identified for all walls, ceilings, floors, stairs, etc.; that wall and roof details are complete and will result in weathertight enclosures; that quantities shown on drawings for details like windows, panels, or special features match elevations; etc. Provide comments in DrChecks or similar application as directed by the contracting officer. Services may include site visits to VA facilities for participation in reviews and meetings with CFM personnel in Washington, DC.

Deliverables: Provide comments and recommendations in DrChecks or similar program as directed by the contracting officer.

2.18 Construction Quality Assurance/Quality Control (QA/QC)

Description of Work: Provide onsite inspection and/or review of construction including a review of testing requirements, sequence, and advice regarding their acceptability. Provide on-site quality assurance and control during construction by witnessing performance tests of various types of structural, electrical, HVAC equipment, sprinkler, fire alarm, communication, and other systems integral to a fully operational building system. Prepare reports associated with on-site inspections or analyses of test reports. Review submittal materials and evaluate contract changes/claims, cost estimates, CPM schedules, modifications, daily logs, and prepare/review responses to requests for information (RFI) associated with construction contractor requests. Provide monitoring services for the return of submittals and other tracking services to assist the Senior Resident Engineer (SRE). Prepare reports associated with on-site investigations of materials, equipment and systems components, test performance, and operation in compliance with the contract specifications, drawings, OEM manuals, code requirements, etc. Services may include forensic investigation and/or destructive testing and associated reporting to identify, quantify, and document deficient construction.

Deliverables: The AE shall provide test reports or product literature responses, cost estimates, and review of product submittals.

2.19 Construction Submittal Review

Description of Work: The AE shall provide submittal review services covering products that may not have been listed within construction contract documents, including but not limited to cut sheets, manufacturers' data/performance sheets, samples, and/or shop drawings which are beyond the services provided by the original design AE (In other words, the AE is providing services in support of a project that are needed, but which do not fall within another original Designer of Record's AE contract). Services may require coordination with the construction contractor and/or original Designer of Record regarding construction submittals to be reviewed and the intent of the design/project. The Contracting Officer shall establish the length of the review period(s). Provide recommendation regarding a compatibility analysis of different materials and recommendations associated with acceptance or rejection of alternate materials and products.

Deliverables: Review of submittals will meet the requirements established by the contracting officer.

2.20 Design-Build RFP Package Development

Description of Work: Attend necessary meetings with Government personnel, review information supplied by the Government, conduct user interviews, and perform any necessary site investigation; study, coordination, tabulation, etc., to produce narratives, performance requirements, specifications, drawings, and associated schedule and cost estimate to quantify and define the requirements for a design-build contract. Services may also include: providing support during solicitation of the design-build contract by reviewing and developing responses to requests for information and/or revisions to documents necessary to support those responses; attending pre-proposal meetings with the Government and prospective offerors for the purposes of describing the project and its requirements; support during design including reviewing design submissions for compliance with the RFP package (i.e. VA) requirements and

providing comments in DrChecks or a similar application as required by the contracting officer; attending design review meetings to discuss or resolve comments; evaluating and providing recommendations to the Government on the acceptability of options presented by the design-build contractor's designer of record, considering durability, life-cycle cost, technical acceptability, or other criteria relevant to the recommendation. Note: The AE of this task order cannot be part of the Design-Build team and the AE will not be the designer of record.

Deliverables: RFP package in accordance with the AE submission requirements and applicable guidance documents on the TIL, DBIA best practices, and/or as described in the task order.

2.21 Building Design

Description of Work: Design programs for administrative and medical space which includes interior space planning furniture design and layout; and creating environmental graphic design of images and virtual reality development. Necessary disciplines include architectural, mechanical, electrical, plumbing, fire protection, civil, landscaping, and other disciplines deemed appropriate by the contracting officer.

Deliverables: Design and construction drawings for medical and office buildings space to include equipment, furniture layout and wall graphics/art.

2.22 Construction Period Services Support

Description of Work: Acting through the Contracting Officer (CO) or designee, shall assist with the interpretation of the construction documents and make recommendation deemed suitable for the satisfactory prosecution of the construction work, shall prepare any supplemental drawings, specifications or other documents that may be required to clarify or supplement the construction documents, and shall assess the preparation of Construction Contract Modifications initiated by or through the VA to be executed in accordance with the Construction Documents.

The AE shall review Government and/or Construction Contractor cost proposals for construction modifications, document his review and make recommendations accordingly, and shall prepare independent breakdown of costs.

The AE shall review and evaluate Government and/or the Construction Contractor's shop drawings, detail drawings, schedules, descriptive literature, and samples, testing laboratory reports, field test data and review the color, texture, and suitability of materials for conformity with the design concept and construction documents. The AE shall recommend approval, disapproval, or other suitable disposition, shall evaluate the submittals with reference to any companion submittals that constitute a system request resubmittal on related components of a system before acting on a single component, and shall notify the CO/SRE of all deviations from the requirements of the construction documents that he has found in the Construction Contractor's submittals.

The AE shall make periodic visits to the project site as and when requested by the CO/SRE. Frequency of visits shall be established by the Task Order but may include weekly, intermediate systems checks and inspections, partial final and final inspection and for special purposes as

requested. Only registered design professionals thoroughly familiar with the project may make site visits. Services include witnessing performance tests of various types of structural, electrical, HVAC equipment, elevators, irrigation systems, fire alarm, communication systems and other systems integral to a fully operational facility, preparing reports associated with on-site inspections or analyses of test reports, review of submittal material, and evaluation of contract modifications, cost estimates, daily logs, and preparation of responses to requests for information (RFI).

Other services may include furnishing advisory or consulting services which are normal to such a professional contract and necessary to assure the proper functioning of elements of the Contractor's design and preparation of Record Drawings.

Deliverables: Deliverables shall be as identified in the Task Order. Delivery dates will be established by the Contracting Officer.

2.23 Other AE Services Required

- Drawing preparation using BIM software
- Comprehensive interior design
- Operations and Maintenance Support Information (OMSI)
- Blasting design and evaluation
- Telecommunications and IT
- Physical Security
- Hazardous material disposal plan
- Cost and risk analyses
- Construction inspection services
- Construction administration
- Construction period services
- Swing space evaluation and design
- Design services for minor and non-recurring maintenance projects
- Third party Commissioning Support
- Post construction services (e.g., activation planning and support)
- DD1391 development and support
- Other than Design-Build RFP development
- Other similar type AE work

3.0 TASK ORDERS

3.1 The general requirements outlined in the contract will be implemented by the Government's issuance of task orders under this contract. Each task order will provide specific requirements and supplemental information in the execution of the work. Task orders will be firm-fixed price (FFP) which will include all labor, travel, and other direct costs (ODCs) for each task order. Each task order will include (at a minimum):

- a. Details of specific tasking, expectations, exceptions, and deliverables.
- b. Task order schedule and milestones to include deadlines and constraints.

- c. Points of contact.
 - d. Government-furnished information helpful or necessary for the execution of the task order (by inclusion of reference).
 - e. Format of deliverables and submission requirements.
- 3.2 The Contracting Officer shall furnish to the AE a preliminary list of VA standards and criteria together with the desired period of performance when the Government requests work.
- 3.3 The AE shall submit to the Contracting Officer within the time required in the proposal request a list of the designated personnel needed for the proposed task order, an estimate of the time required by each of such personnel for performance of the work, itemized list of the cost of materials and travel, and profit. The AE shall at the same time submit their proposal for the work, including the time for its completion.
- 3.4 The Contracting Officer will issue a task order setting forth the completion date and a lump sum price for the work which are mutually agreeable.
- 3.5 Selection of an AE under this MATOC will be based on the qualifications among those who have been awarded this MATOC contract.
- 3.6 Unless otherwise expressly stated in the task order issued, all work performed under each task order will abide by the requirements of this base contract. Where there is a conflict, the requirements of the task order will take precedence over the requirements of the base contract.
- 3.7 The AE shall initiate the services within 10 calendar days after the task order is issued, unless otherwise indicated on the order, and shall complete all work and services under each task order within the period of performance specified in the task order. During the execution of the work the AE shall promptly notify the Contracting Officer in writing of any discrepancies, ambiguities, or lack of clarity in the materials or instructions provided. Such notification shall be made in writing within 10 days of the event.
- 3.8 The performance schedule and required delivery date for each product produced under this contract will be reflected in the appropriate task order. Optional services may be exercised in accordance with the schedule established for each project under the task order.
- 4.0 **TECHNICAL CRITERIA AND STANDARDS**
- 4.1 All work shall be in full compliance with the most current version of all codes, criteria, standards, and regulations as outlined by, the requirements of the CFM TIL documents at the time of task order award and updated at the first Schematic Design (SD1) submission for Design-Build (DB) and second Schematic Design (SD2) submission for Design-Bid-Build (DBB), as relevant and applicable to each project. Additional references may be provided in the scope of each task order for the purposes of bringing awareness to the AE. This will not preclude the contractor from the responsibility of possessing, acquiring, understanding, and applying a professional understanding of codes, criteria, and regulations associated with the tasking.

- 4.2** The VA TIL available at <http://www.cfm.va.gov/til/index.asp> is managed by the VA Office of Construction & Facilities Management and is the master repository for all VA Numbered Standards for Construction. The documents of the TIL shall be the minimum design criteria for all VA projects performed in the construction of new facilities and the modernization, alteration, addition, or improvement of its real property. All design documents shall be developed in accordance with the VA TIL.
- 4.3** The following information and criteria are made a part of this MATOC by reference, as applicable to the requirements of the specific task order. Some applicable Federal, state/commonwealth, and industry standards are referenced below. All applicable standards, including those that are not referenced or listed, constitute criteria for designs delivered under this MATOC:
- a. A/E/C CADD Standards
 - b. VA Design Guides, Design Manuals and Design Alerts
 - c. Federal Acquisition Regulation (FAR) (<https://www.acquisition.gov/browse/index/far>)
 - d. Department of Veteran Affairs Design Guides
 - e. National Fire Protection Association (NFPA) standards and codes
 - f. Americans with Disabilities Act Accessibility Guidelines (ADAAG)
 - g. Uniform Federal Accessibility Standards (UFAS)
 - h. American National Standards Institute (ANSI): Electronic Industries Alliance (EIA) and Telecommunications Industry Association (TIA) standards
 - i. U.S. Green Building Council, Leadership in Energy and Environmental Design (LEED) Rating Systems
 - j. The Facility Guidelines Institute –
 - Guidelines for Design and Construction of Hospitals
 - Guidelines for Design and Construction of Outpatient Facilities
- 4.4** In the event that a code, criteria, standard, regulation, or instruction changes during design, the AE will make a reasonable attempt to accommodate the changes as the design progresses. If such a change requires significant re-work to the design, the AE shall first contact the Contracting Officers Representative or Contracting Officer to discuss possible resolution options, to include task order modification. In some cases, a particular standard may be replaced by something more relevant to the service customer or installation. In these cases, the substitution will be specifically addressed at the task order level.
- 4.5** Other documents identified as necessary to the performance of this MATOC will be called out in specific task orders. Such documents may include, but not be limited to, standards, specifications, agreements, and other reference documents needed to identify and clarify the specific work tasks or deliverable products.
- 4.6** The AE shall assure that all designed systems are coordinated with the end user, be compatible, and integrate with existing or proprietary government systems, as applicable.
- 5.0 MANAGEMENT AND ORGANIZATION**
- 5.1 Program Manager.** The AE must designate a company officer or responsible representative as AE Program Manager. The AE Program Manager is responsible for the complete coordination and

execution of all work under this MATOC to include work provided by sub-contractors and consultants.

- 5.2 Project Manager.** The AE must designate a Project Manager for each task order awarded. The Project Manager is responsible for the coordination and execution of all work under each task order to include work provided by sub-contractors and consultants.
- 5.3 Key Personnel.** Key personnel for this MATOC and the required qualifications for each key personnel position are identified in Attachment A – Key Personnel and Minimum Qualifications.
- 5.4 Contractor Key Personnel Replacement.** The replacement of key personnel and subcontractor shall be in accordance with FAR 52.244-4. Prior to utilizing other than previously specified personnel in awarded task orders, the contractor shall notify the Government Contracting Officer and the Contracting Officer Representative for that task order. This notification shall be no later than 10 calendar days in advance of any proposed substitution and shall include justification (including resume(s) and labor category of proposed substitution(s)) in sufficient detail to permit evaluation of the impact on task order performance. Substitute personnel qualifications shall be equal to, or greater than, those of the personnel being substituted.

If the Government Contracting Officer and the Contracting Officer Representative determine that the proposed substitute personnel are unacceptable, or that the reduction of effort would be so substantial as to impair the successful performance of the work under the MATOC, the AE may be subject to default action as prescribed by FAR 52.249- 8, Default (Fixed-Price Supply and Service).

6.0 QUALITY CONTROL

The AE is responsible for the professional quality, technical accuracy, and coordination of all designs, drawings, specifications, and other work or materials produced and furnished by the AE's staff as well as that of any sub-consultants. The AE must perform and deliver all work in keeping with commonly accepted practices, quality, and professional standards for the AE industry. All work must be accomplished with adequate internal controls and review procedures to ensure quality and technical adequacy of all deliverables in accordance with the VA's Program Guide, PG-18-15. The AE shall correct or revise any error or deficiencies in the work, regardless of review, approval, acceptance, or payment by the Government. The responsibility to assure product quality continues even after final payment is made to the AE. Corrections and changes resulting from review of the submitted work are for the AE to correct without additional compensation. The AE may be liable for damages to the Government caused by negligent performance, pending a review of the situation. The submittals will be reviewed by appropriate Government agencies to evaluate conformance and AE's effective quality control.

In accordance with ER 1110-1-8159, the AE shall be required to utilize a design review and checking system (i.e., DrChecks) for annotating and managing all review comments generated during specified progress reviews. DrChecks is a free online collaboration tool accessible via the Internet at <http://www.projnet.org>. The AE shall provide this capability to its staff requiring access to submit, evaluate, or back check review comments.

- 6.1 Quality Management Plan.** Within 30 days of base contract award, submit a Quality Management Plan (QMP) for review and acceptance by the Contracting Officer. The QMP shall broadly describe the processes by which the AE intends to ensure quality as broadly applied to each potential task order. The QMP shall be written with sufficient detail as to determine fault, generate lessons learned, and recommend internal improvement if a failure in quality occurs. The QMP shall be reviewed annually and resubmitted as improvements are made and submitted for acceptance by the Contracting Officer.

A task order specific QMP shall be written and submitted within 30 days of task order award. It will discuss the items described in the base QMP, but with details specific to how the AE intends to ensure quality on the task order. Work will not begin until the task-level QMP is approved and accepted by the Contracting Officer.

- 6.2 Government Review and Evaluation.** The Government will review project submittals and work processes in accordance with each task order's Quality Assurance Plan (QAP). The purpose of this review is to evaluate the adequacy of the contractor's quality control system as applied to the products and methods employed on each task order. No less than annually, and at the conclusion of each task order, the Contracting Officers Representative will evaluate the contractor's performance through the Contractor Performance Assessment Reporting System (CPARS) in the following categories (as applicable IAW FAR 42.1502(f)): Management, Quality, Schedule, and Cost. Other factors may be evaluated as applicable.

The AE shall implement, maintain, and control a system for identification, preparation, reproduction, distribution, and maintenance of all documentation, data, and information necessary for the AE's internal management as well as Government management of this project.

Each task order will define the submittals of draft, progress, and final deliverables that will be reviewed by appropriate Government agencies to evaluate conformance and AE's effective quality control. The time frame for Government review varies; however, this process is typically completed within 14-21 calendar days. At the conclusion of the government's review, the AE shall evaluate each comment and provide written notification of resolution actions for each comment in the design review and checking system required by the task order award. After a complete evaluation of each comment, a design review meeting will be held (either in-person or telephonically) to review the disposition of each comment and how it will be addressed. A submittal with a significant number of errors may necessitate a complete re-submission in lieu of review. All comments are expected to be addressed and resolved in the next submission. This will necessitate a government back check of old comments as well as a review for new comments (except for the final revised submittal which should only require back check). The AE may choose to perform work, at its own risk, during the Government review and comment resolution period, however, comments resulting from that review must be incorporated into the design prior to the next submittal. In the event a subsequent design phase is not authorized, the AE shall incorporate all available review comments into the design to complete the current phase. The lack of review or quality of review by the Government does not preclude the AE from being completely responsible for the quality of all deliverables.

- 6.3 Certification of Work.** All design drawings and specifications submitted under the MATOC shall contain the seal of a professional engineer registered in the state in which the AE's work was

performed. Other documentation shall contain certification required by the state in which the work was performed.

7.0 COMMUNICATION

7.1 Meetings and Teleconferences. Periodic meetings shall be scheduled whenever requested by the AE or directed by the Contracting Officer or the Contracting Officer's Representative for the resolution of questions or problems encountered in the performance of the work. The AE and/or the appropriate representative(s) shall be required to attend and participate in all conferences, working groups, and committees pertinent to the work required under this MATOC as directed by the Contracting Officer or the Contracting Officer's Representative. The AE and/or the appropriate representative(s) shall be required to attend and participate in all conferences, working groups, and committees pertinent to the work required under this MATOC as directed by the Contracting Officer.

7.2 Written Records. Maintain (and provide upon request) a written record of all conferences, meetings, discussions, verbal directions, telephone conversations, etc., with Government representative(s) relative to this MATOC per task order in which the AE and/or a designated representative(s) participates. These records shall be dated and shall identify the MATOC number, the task order number, and the SOW paragraph references, if applicable, participating personnel, subject discussed, action items, and conclusions reached. Minutes of significant meetings shall be provided to participants.

The AE shall number in sequence all correspondence issued for each task order. All correspondence on the task order shall reference the MATOC number and task order number.

7.3 Monthly Status Reports. The AE shall provide a monthly status report of each task order currently in progress no later than the 10th calendar day of every month. Include a copy of the report as an attachment to each official invoice and electronically transmit copies to the Government Project Managers and Contracting Officer Representatives associated with the individual task order. Status must include the following but may contain other useful information:

- a. Salient project information (project title, description, task order number, and location),
- b. Period of performance of the task order,
- c. Name of project team members, their role, and contact information,
- d. A concise narrative on the current status of work performed,
- e. Current schedule (major milestones only),
- f. Schedule and status of deliverables,
- g. Areas of risk or concern,
- h. Requested government actions and due outs,
- i. Recommendations for problem resolution,
- j. 30-day look ahead,
- k. Status of actual fees paid versus total FFP task order and technical progress as compared with projections based on the schedule milestones.

- 7.4 Proactive Communication.** The AE shall notify the Contracting Officer and COR of any discrepancies and/or ambiguities in the materials or instructions furnished during the execution of work awarded from this MATOC. The AE shall make notifications in writing within 10 days receiving the material or instructions.
- 7.5 Critical Issues.** If, during the execution of work, the AE becomes aware of critical information which has an immediate, significant, and compelling impact to the project in terms of safety, scope, schedule, cost, quality, or timely execution, as soon as practical, inform the Contracting Officer's Representative, and Contracting Officer of the concern and its potential impacts.
- 7.6 Contractual Direction & Authorized Changes.** Only the Contracting Officer may authorize changes to the scope of the base contract or awarded task order. The AE shall immediately notify the Contracting Officer's Representative and Contracting Officer if anyone except the Contracting Officer requests that work be performed that is contrary to, in excess of, or less than the scope and intent of the awarded task order. The AE shall not execute such changes unless concurrence is given by the Contracting Officer, in writing through a task order modification. The Government Contracting Officer's Representative is authorized to coordinate routine technical matters. The AE shall consult the Contracting Officer's Representative and Contracting Officer before proceeding with any work where it is unclear whether a request is within the scope of the task order.
- 7.7 Public Disclosure of Information.** The AE shall make no public announcement or disclosure relative to information contained or developed under this MATOC, except as authorized by the Contracting Officer.
- 8.0 SUBMITTAL FORMATTING**
- 8.1 Reports and Studies.** All reports shall be published and provided in electronic format unless otherwise stated at the task order level. Electronic files must be submitted in their native authoring software (MS Word, Excel, PDF, AUTOCAD .dwg, AutoCAD Civil 3D, REVIT. Rvt, etc. formats), and in PDF format, grouped by folders and a top-level index of files. If hard copies are required, all formal narratives and tabular data shall be typed and printed on 8-1/2 x 11-inch sheets with fold outs for maps, sketches, schematics, charts, graphs, and other illustrative material, as necessary. Generally, all formal narrative text shall be typed in lines perpendicular to the longest axis of the sheet. Data, which cannot be clearly described in narrative form, shall be graphically shown. Legible reproducible drawings and sketches exceeding 8-1/2 x 11 inches shall be submitted in the number of copies stated in the individual task order. When paper copies are requested in a task order, typed and formal documents 11 x 17 inches or less in size shall be securely bound in hard paper or a flexible material in a durable and attractive manner. The title of the document shall appear on the cover of all submittal documents. When paper copies are requested in a task order, all final documents shall be bound in a manner which will facilitate repeated disassembly and reassembly, and the title shall appear on the bound edge, in a secure manner, as well as on the cover. Narrative contents of the document(s) shall be arranged in a logical sequence and organized by sections, unless otherwise specified. A table of contents and index are required for each document. Tabs and/or dividers shall clearly and distinctly divide sections, subsections, appendices, etc. Pages, paragraphs, charts, and graphs shall be numbered with master pagination across all pages of the document. References to information contained

elsewhere within the contents of the document(s) will be properly noted. All data sources used in preparing the information presented in the document(s) shall be appropriately referenced.

For each study, investigation, or analysis, the AE shall document its findings in a report that includes an executive summary, the approach, descriptions of each alternative considered, assumptions, rationale, costs, back-up data, and recommendations. Data sources shall be identified. Assumptions shall be clearly stated, adequately justified, and provided with each required submittal.

- 8.2 Specifications.** The AE shall use the VA's TIL when preparing all technical specifications with the exception of Division 27 specifications which were developed by VA's Enterprise Data Center and Infrastructure Engineering (DCIE). All specifications will be edited and maintained in the word document format unless otherwise stated in the task order. Specifications shall conform to industry standards for format and content as established by the Construction Specification Institute (CSI) Manual of Practice. Most of the guides are updated frequently.

When TIL guide specifications are not available for any required division, the AE shall utilize the Unified Facilities Guide Specifications (UFGS). New specification sections and paragraphs shall utilize the CSI three-part format (General, Products, and Execution). These new specifications shall list the essential features, functions, and other factors to clearly indicate the type and quantity of items/work required. All specifications will be prepared by listing parameters and requirements that can be met by several manufacturers. Listing trade names and proprietary items within the plans and specifications must be specifically approved by the Contracting Officer. Listing trade names or proprietary items within the plans or specifications as a "basis of design" and "or equivalent" is not acceptable. Salient features must be listed to avoid sole-source wherever possible. Required sole-source items (i.e. for compatibility reasons) must be promptly identified and communicated.

9.0 MISCELLANEOUS REQUIREMENTS

- 9.1 Electronic File Storage, Transmission and Access.** The AE shall provide a web-based project information system to manage the storage and transmission of project deliverables with stakeholders and the Project Delivery Team (PDT). Access to relevant data and databases shall be available on-line to the government.
- 9.2 Government Furnished Information.** Government furnished information such as criteria, study information, and other assistance will be determined prior to issuing a task order. The AE shall check the items furnished for adequacy and accuracy prior to utilization. The Government will furnish necessary data or information relating to the particular work required. The AE Firm shall prepare and submit a missing, incomplete, or ambiguous data report to ensure that the Government has provided complete and usable material for the TO. The Government-furnished data must be returned upon completion of the contract.
- 9.3 Government Furnished Property.** If applicable, all Government furnished property will be identified on the individual task order level.

- 9.4 Safety Requirements.** If applicable, all safety requirements will be identified on the individual task order level.
- 9.5 Training Requirements.** If applicable, all training requirements will be identified on the individual task order level.
- 9.6 Security Requirements.** If applicable, all security requirements will be identified on the individual task order level.
- 9.7 Permits.** The AE is responsible for identifying, obtaining, and renewing all permits from Federal, state, and local agencies to carry out the requirements specified in this MATOC or detailed on each individual task order.
- 9.8 Unlimited Rights.** In accordance with FAR 27.404 (a), the Government will retain unlimited data rights for all information delivered under the MATOC other than limited rights data or restricted computer software as defined in section 27.404 (f).
- 10.0 ATTACHMENTS**
- a. Attachment A – Key Personnel and Minimum Qualifications